

25AVCV01251 25AVCV01251

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Case Number: 25AVCV01251 Hearing Date: September 22, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

MUIDEEN GANIYU,

Plaintiff,

v.

FREDD GARCIA, an individual; BO KIM, an individual; MANUEL TAMBUNTING, an individual; and DOES 1 through 25, inclusive,

Defendants.

Case Number 25AVCV01251

[TENTATIVE]

RULING ON MOTION

Date of Hearing: September 22, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a breach of contract action. Defendants Fredd Garcia (Garcia) and Bo Kim (Kim) move to stay the case and compel arbitration.

On September 24, 2025, Plaintiff Muideen Ganiyu (Plaintiff) filed a complaint against Defendants Garcia, Kim, and Manuel Tambunting (Tambunting) asserting fourteen causes of action for (1) breach of contract, (2) violation of Civil Code section 1102, (3) violation of Civil Code section 1102.6, (4) violation of Civil Code section 1102.13, (5) violation of Civil Code section 2079, (6) violation of Business and Professions Code section 10176(a), (7) fraudulent concealment (Civil Code sections 1709, 1710), (8) negligent misrepresentation, (9) professional negligence, (10) intentional infliction of emotional distress, (11) unjust enrichment, (12) fraud, (13) fraudulent inducement, and (14) negligence per se.

Plaintiff alleges that on September 14, 2024, Plaintiff entered into a Residential Purchase Agreement to purchase the real property located at 37643 Barrinson Street, Palmdale, CA 93550 (the Property) for \$469,000. (Compl., ¶ 14.) Garcia acted as the seller's agent, while Kim served as the supervising broker, who was allegedly on notice of Garcia's misconduct and failed to take action. (Compl., ¶ 15.) Plaintiff claims the Property was falsely marketed and sold as a single family home suitable for immediate residential use, and that Defendants together coordinated a scheme to defraud Plaintiff by failing to disclose extensive defects in the Property. (Compl., ¶¶ 17-20.)

On December 18, 2025, litigation in the present case was stayed pending completion of mediation. The stay was lifted on June 22, 2026.

On August 10, 2026, Defendants Garcia and Kim filed a motion to stay the case and compel arbitration. This motion is unopposed.

II. Legal Standard

Standard for Compelling Arbitration – California law incorporates many of the basic policy objectives contained in the Federal Arbitration Act, including a presumption in favor of arbitrability. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 971-72.) Code of Civil Procedure section 1281.2 permits a party to file a motion to request that the Court order the parties to arbitrate a controversy.

The party seeking to enforce the arbitration agreement bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence. (*Giuliano v. Inland Empire Personnel, Inc.* (2007) 149 Cal.App.4th 1276, 1284.) The trial court first decides whether an enforceable arbitration agreement exists between the parties, then determine whether the plaintiff's claims are covered by the agreement. (*Omar v. Ralphs Grocery Co.* (2004) 118 Cal.App.4th 955, 961.) The party opposing the petition to compel arbitration bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. (*Giuliano v. Inland Empire Personnel, Inc.*, *supra*, at 1284.) In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination. (*Id.*)

Barring certain circumstances set forth in Code of Civil Procedure section 1281.2, the Court must compel arbitration upon a finding that: (1) there was a valid agreement to arbitrate between the parties; and (2) said agreement covers the controversy or controversies in the parties' dispute. (Code Civ. Proc., § 1281.2; See *Omar*, *supra*, 118 Cal.App.4th at 961.) Because public policy strongly favors arbitration, "any doubts regarding the arbitrability of a dispute are resolved in favor of arbitration." (*Coast Plaza Doctors Hospital v. Blue Cross of California* (2000) 83 Cal.App.4th 677, 686.)

III. Discussion

Application – Defendants Kim and Garcia (hereinafter “Defendants”) move to compel arbitration and stay this case pursuant to Code of Civil Procedure sections 1281, 1281.2, 1281.4, and 1281.7 on the grounds that the purchase sale agreement requires arbitration and that Defendants are permitted to compel arbitration. (Motion, p. 2:3-12.)

On September 14, 2024, Defendant Tambunting entered into a purchase sale agreement and Joint Escrow Instructions (the Agreement) with Plaintiff for the sale of the Property. Plaintiff was represented by non-party realtor Reza Mohajer of Premier Agent Network, Inc.

Defendants attach as Exhibit A to their Motion a copy of the Agreement. Paragraph 28 of the Agreement contains an “Arbitration of Disputes” provision dated September 14, 2024 and initialed by Plaintiff. The provision provides, in pertinent part:

(A) The Parties agree that any dispute or claim in Law or equity arising out of this Agreement or any resulting transaction, which is not settled through mediation, shall be decided by neutral, binding arbitration. The parties also agree to arbitrate any disputes or claims with Agents(s), who, in writing, agree to such arbitration prior to, or within a reasonable time after, the dispute or claim is presented to the Agent.

...

(E) NOTICE: BY INITIALING IN THE SPACE BELOW YOU ARE AGREEING TO HAVE ANY DISPUTE ARISING OUT OF THE MATTERS INCLUDED IN THE ‘ARBITRATION OF DISPUTES’ PROVISION DECIDED BY NEUTRAL ARBITRATION AS PROVIDED BY CALIFORNIA LAW AND YOU ARE GIVING UP ANY RIGHTS YOU MIGHT POSSESS TO HAVE THE DISPUTE LITIGATED IN A COURT OR JURY TRIAL. BY INITIALING IN THE SPACE BELOW YOU ARE GIVING UP YOUR JUDICIAL RIGHTS TO DISCOVERY AND APPEAL, UNLESS THOSE RIGHTS ARE SPECIFICALLY INCLUDED IN THE ‘ARBITRATION OF DISPUTES’ PROVISION. IF YOU REFUSE TO SUBMIT TO ARBITRATION AFTER AGREEING TO THIS PROVISION, YOU MAY BE COMPELLED TO ARBITRATE UNDER THE AUTHORITY OF THE CALIFORNIA CODE OF CIVIL PROCEDURE. YOUR AGREEMENT TO THIS ARBITRATION PROVISION IS VOLUNTARY.

(Garcia Decl., p. 14, ¶ 28.)

The Agreement is signed only by Plaintiff and Defendant Tambunting. However, “[n]onsignatory defendants may enforce arbitration agreements ‘where there is sufficient identity of parties.’” (Marengo v. DirecTV LLC (2015) 233 Cal.App.4th 1409, 1417.) Enforcement by a nonsignatory is permitted where the nonsignatory is the agent for a party to an arbitration agreement, is a third party beneficiary of the agreement, or establishes right to enforce under the doctrine of equitable estoppel. (Ibid.) Equitable estoppel “applies where, for example, a signatory plaintiff sues a nonsignatory defendant for claims that are based on an underlying contract. In such instance, the plaintiff may be equitably estopped to deny the nonsignatory defendant’s right to enforce an arbitration clause that is contained within the contract that the plaintiff has placed at issue.” (Ibid.)

Here, Defendants are entitled to enforce arbitration under the Agreement. Defendants were the agents of Defendant Tambunting, a signatory of the Agreement and arbitration provision. (Garcia Decl., ¶ 1.) The first page of the Agreement states “[t]he following agency relationships are hereby confirmed for this transaction,” and lists Leader One Realty, Inc., Kim’s brokerage firm, as Seller’s Brokerage Firm, and names Garcia as the Seller’s Agent. (Ex. A, p. 1, ¶ 2.) The express language of the arbitration provision states that the parties agree to arbitrate all disputes or claims with the Agents who agree in writing to arbitrate, either prior to or within a reasonable time after the dispute or claim is presented.

Plaintiff's complaint was filed in September of 2025. Defendants were served in October of 2025. On December 18, 2025, the parties stipulated to stay the case pending completion of mediation in accordance with section 27(a) of the Agreement. Defendants assert that on June 4, 2026, the parties mediated with Rose Nazarin, Esq., but the case did not settle. (Motion, p. 4:3-4; Weiss Decl., ¶ 1.) On June 26, 2026, Defense counsel Richard Weiss promptly sent a letter via email to Plaintiff's counsel demanding arbitration. (Motion, p. 4:4-10; Weiss Decl., ¶ 2.) Plaintiff's counsel has since been relieved as counsel of record.

Under the express terms of the Agreement, namely the Agency relationship created in paragraph 2, the mediation prerequisite described in paragraph 27(a), the language of the arbitration agreement in paragraph 28, and Defendants' clear agreement to mediate and arbitrate the dispute under the Agreement within two months of service, Defendants are entitled to enforce the terms of this Agreement and compel arbitration. (See also *Dryer v. Los Angeles Rams* (1985) 40 Cal.3d 406, 418.)

Defendants argue that they are also agents of signatory Defendant Tambunting under general California agency law. In a real property transaction, an "agent" is "a person acting under provisions of Title 9 (commencing with Section 2295) in a real property transaction, and includes a person who is licensed as a real estate broker under Chapter 3 (commencing with Section 10130) of Part 1 of Division 4 of the Business and Professions Code, and under whose license a listing is executed or an offer to purchase is obtained." (Civ. Code, § 2079.13, subd. (a).) "When a salesperson or broker associate owes a duty to any principal, or to any buyer or seller who is not a principal, in a real property transaction, that duty is equivalent to the duty owed to that party by the broker for whom the salesperson or broker associate functions." (Civ. Code, § 2079.13, subd. (a).) "[A]n associate licensee does not have an independent agency relationship with the clients of his or her broker, but rather an agency relationship that is derived from the agency relationship between the broker and the client. Against that backdrop, Civil Code section 2079.13, subdivision (b), is most naturally read to mean that the associate licensee owes the parties to that transaction the same duties as the broker on whose behalf he or she acts." (*Horiike v. Coldwell Banker Residential Brokerage Co.* (2016) 1 Cal.5th 1024, 1037.) Here, there is a clear agency relationship, with Kim serving as broker and Garcia as an agent under Kim's brokerage. Therefore, general agency law creates a clear agency relationship between Tambunting and Defendants, and for the reasons discussed above, Defendants are entitled to enforce the Agreement.

Finally, Defendants argue they are also entitled to enforce the Agreement under the doctrine of equitable estoppel. Under both California and federal law, "a nonsignatory defendant may invoke an arbitration clause to compel a signatory plaintiff to arbitrate its claims when the causes of action against the nonsignatory are 'intimately founded in and intertwined' with the underlying contract obligations." (*Molecular Analytical Systems v. CIPHERGEN Biosystems, Inc.* (2010) 186 Cal.App.4th 696, 706.) "By relying on contract terms in a claim against a nonsignatory defendant, even if not exclusively, a plaintiff may be equitably estopped from repudiating the arbitration clause contained in that agreement." (*Ibid.*)

The gravamen of Plaintiff's case against Defendants is their breach of the Agreement and their duties thereunder to deliver the Property in habitable condition suitable for residential use. (Compl., ¶ 31.) Further allegations include inadequate disclosures in the Seller Property Questionnaire (Compl., ¶ 36), failure to disclose structural modifications on the Transfer Disclosure Statement (Compl., ¶ 42), failure to amend disclosures after execution of the Agreement (Compl., ¶¶ 47-48), breach of professional duty as licensed real estate professionals (Compl., ¶ 73), and fraudulently inducing Plaintiff into entering into the Agreement by knowingly making false and misrepresentative statements of fact and concealing material facts (Compl., ¶¶ 54, 57, 63, 69, 78, 85, 90). These claims against Defendants all arise out of the Agreement for sale of the Property, Defendants' duties thereunder, the breach of those duties, and the alleged fraud, concealments, and misrepresentations in connection with the sale of the Property. These claims rely on the existence of the Agreement and Plaintiff's agreement to purchase the Property and are so intimately founded in and intertwined with the underlying Agreement that equitable estoppel applies and provides another basis for Defendants' enforcement of the arbitration provision.

Accordingly, Defendants are entitled as non-signatories to compel arbitration based on the express language in the Agreement, general California agency law, and equitable estoppel. The language of the arbitration agreement encompasses any dispute or claim in law or equity arising out of the Agreement or any resulting transaction that is not settled through mediation, including all claims against Agents. Such broad language unequivocally encompasses Plaintiff's claims, which all arise out of the sale of the Property. Plaintiff has not opposed this motion and previously submitted to mediation pursuant to section 27(a) of the same Agreement, and mediation was unsuccessful.

Accordingly, Defendants' motion to compel is GRANTED.

IV. Conclusion

Defendants Bo Kim and Fredd Garcia's Motion to Stay This Case and Compel Arbitration is GRANTED.